

Mobin Ahamad v. State of U.P. & 2 Ors.

Allahabad High Court · Division Bench · 4 February 2015 · Criminal Misc. Writ Petition No. 3004 of 2015 · **Writ petition disposed of; prayer to quash FIR refused, but arrest (if any) directed to comply with s.41(1)(b)/41-A Cr.P.C. safeguards, with compounding remedy left open under the Supply Code/s.152**

HEADNOTE

A petition to quash an FIR registered under Section 135 of the Electricity Act, 2003 (theft of electricity) will not be entertained where the FIR discloses a cognizable offence. However, where the offence would not entail a sentence exceeding seven years, arrest must comply with the safeguards under Section 41(1)(b) read with Section 41-A Cr.P.C.; if the offence is compoundable, the accused's remedy lies under the provisions of the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003, not by way of quashing.

HOLDING-UNITS

INTERPLAY · EA2003::135

FIR disclosing a cognizable s.135 offence will not be quashed, but arrest must follow Cr.P.C. s.41(1)(b)/41-A safeguards, and a compoundable offence's remedy lies via the Supply Code/s.152, not quashing

QUESTION

Should an FIR under s.135 of the Electricity Act, 2003 be quashed on the ground that the offence carries a sentence of less than 7 years and is compoundable?

HOLDING

No — the FIR discloses a cognizable offence and will not be quashed merely because the alleged offence attracts less than 7 years' imprisonment or is compoundable. However, since the sentence would not exceed 7 years, any arrest must comply with the safeguards under Section 41(1)(b) read with Section 41-A of the Cr.P.C.; if the offence is compoundable, the accused may seek his remedy under the provisions of the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ [unnumbered order](#)

LIMITING FACTS

FIR registered as Case Crime No. 33 of 2014 under s.135 of the Electricity Act, 2003 at P.S. Mughalsarai, District Chandauli; petitioner sought quashing on the apprehension of mechanical arrest.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A cognizable s.135 FIR will not be quashed, but arrest must comply with Cr.P.C. s.41(1)(b)/41-A safeguards where the offence carries under 7 years, and a compoundable s.135 offence's remedy lies via the Supply Code/s.152 route rather than quashing. ¶ [unnumbered order](#)